ORDINANCE NO. 443

AN ORDINANCE ENTITLED TO AUTHORIZE THE CITY COUNCIL OF THE CITY OF RECTOR TO ASSUME AND CONTROL THE WOODLAND HEIGHTS CEMETERY, TO AUTHORIZE THE IMPLEMENTATION OF THE WOODLAND HEIGHTS CEMETERY COMMISSION IN THE CITY OF RECTOR, AND FOR OTHER PURPOSES.

WHEREAS; The City of Rector enacted an Ordinance No. 221 on the 21st day of October, 1947, authorizing the City of Rector to assume the control and operation of the Woodland Heights Cemetery under the auspices of a Board of Managers;

WHEREAS; The City of Rector received deeds from the Woodland Heights Cemetery Association deeding the cemetery property to the City sometime between the years 1945 to 1947;

WHEREAS; The City of Rector did not function as the entity to assume or control the daily operation of the Woodland Heights Cemetery;

WHEREAS; It appears the operation of the cemetery was done by an association, by name only, without any authority of the City of Rector;

WHEREAS; The present officers of the association have requested that they do not desire to continue the duties and responsibilities of the care of the cemetery without proper supervision and authority;

NOW THEREFORE BE IT ORDAINED by the Council of the City of Rector, Arkansas.

SECTION 1. That the City of Rector shall assume full power and authority, as prescribed by law, to operate and maintain the Woodland Heights Cemetery, of the City of Rector and does hereby create a Woodland Heights Cemetery Commission.

SECTION 2. The Commissioners shall consist of five members and shall be known as the "Woodland Heights Cemetery Commission" to serve for a period of five years each, with the exception of the original Commissioners appointed under this Ordinance.

SECTION 3. The members selected by this Ordinance shall be appointed by the Mayor of the City of Rector and approved by the City Council. The five member commission that is appointed on the date of approval of this Ordinance shall serve as follows:

One member shall serve until December 31, 1997;

One member shall serve until December 31, 1998;

One member shall serve until December 31, 1999;

One member shall serve until December 31, 2000;

One member shall serve until December 31, 2001;

Therefore, members appointed after the date of this Ordinance shall serve for a period of five years.

SECTION 4. The Commissioners shall have regular meetings at their discretion and at the first meeting shall vote and appoint a Chairperson and Secretary. The

Secretary shall be bonded as the Commissioners may require. It is further directed that an oath of office shall be required before entering into their official duties.

SECTION 5. The Commissioners shall have complete power and authority to employ persons, sell cemetery lots at the price determined by the commissioners, to purchase machinery and any other duties that may be required to fully maintain and operate the Woodland Heights Cemetery. This section is to be construed in the most liberal manner.

SECTION 6. The Commissioners shall make a yearly audit report to the City Council and shall be subjected to audits by the proper agencies. The Commission shall publish, in a newspaper of general circulation, a report of its financial conditions within fifteen days after January 1 of each year. Further in the event that the Commissioners sponsor or support any activity that produces monies for or on behalf of the Woodland Heights Cemetery, it shall publish within ninety days from that event a report of its expenses and profits in a newspaper of general circulation in the County.

SECTION 7. The commissioners may at its discretion request approval for any project or any function that it intends to implement from the City Council.

SECTION 8. The Commissioners shall not be required to reside in the city limits of Rector.

SECTION 9. This Ordinance shall repeal Ordinance No.221 of 1947.

SECTION 10. Nothing herein contained in this Ordinance shall intend to imply or to abrogate the appreciation to those who have diligently worked to preserve the Woodland Heights Cemetery since its inception.

SECTION 11. (EMERGENCY CLAUSE) Because of immediate need to provide definition and permitted use of the Woodland Heights Cemetery in the City of Rector, an emergency is declared to exist and the Ordinance shall be in force and effect as of the date of its passage and first publication.

PASSED AND APPROVED this 3 day of March, 1997.

By: Ronald E. Kemp

Mayor Ronald E. Kemp

Attest:

Kenneth R Burns

Recorder/Treasurer Kenneth R. Burns